

26STCV14429 26STCV14429

County: los-angeles

Division: Civil Law and Motion

Department: 406

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Case Number: 26STCV14429 Hearing Date: August 5, 2026 Dept: 406

CHRISTINA HEWETT,

Plaintiff,

v.

LIL' WAVE FINANCIAL,

INC., et al.,

Defendants.

Case No.: 26STCV14429

Hearing Date: August 5, 2026

[TENTATIVE]

order RE:

defendant cinnabar holdings, llc's

demurrer to complaint

BACKGROUND

On May 6, 2026, Plaintiff Christina

Hewett filed this action against Defendants Lil' Wave Financial, Inc. (dba

Superior Loan Servicing) and Asset Default Management, Inc. The complaint

asserts (1) injunctive relief, (2) cancellation of instruments, (3) usury, and

(4) declaratory relief.

Plaintiff alleges that she entered into a loan agreement with Superior Loan Servicing (SLS) for \$180,000. Plaintiff alleges that Defendants failed to provide the proper notices and disclosures, refused to cooperate with Plaintiff's repayment efforts, and pursued foreclosure.

Plaintiff sued SLS, the loan servicer. However, the actual lender is Cinnabar Holdings, LLC. Cinnabar intervened and, on June 30, 2026, filed the instant demurrer. Plaintiff has not filed an opposition.

LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Taylor v. City of Los Angeles Dept. of Water and Power (2006) 144 Cal.App.4th 1216, 1228.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or by proper judicial notice. (Code Civ. Proc., § 430.30(a).) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (SKF Farms v. Superior Court (1984) 153 Cal.App.3d 902, 905.) "California law emphasizes ultimate fact pleading (with some exceptions, notably for fraud and related torts) 'in ordinary and concise language,' and the test for adequacy is not absolute but 'whether the pleading as a whole apprises the adversary of the factual basis of the claim.'" (Lim v. The.TV Corp. Internat. (2002) 99 Cal.App.4th 684, 690.)

DISCUSSION

The complaint fails to articulate a valid basis for relief against Cinnabar. The complaint does not dispute that Plaintiff obtained a loan and failed to repay it. Therefore, the lender was entitled to pursue default and foreclosure. Plaintiff concedes the defect by failing to oppose the demurrer.

CONCLUSION

Defendant Cinnabar Holdings, LLC's

demurrer is SUSTAINED without leave to amend.